

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable Mark A. McCannon
1050 Mission Road, South San Francisco, CA 94080
Department 2, Courtroom K
Thursday 7/16/2026 at 2:00 pm

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept2@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling **OR** call (650) 261-5102 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/>

Meeting ID: 160 135 4419

Password: 845111

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case

Title / Nature of Case

2:00 PM

LINE: 1

23-CIV-02445

GLORIA DEL ROSARIO AUSTRIA VS. KYU LEE, ET AL

GLORIA DEL ROSARIO AUSTRIA
KYU LEE

SHARONA ESLAMBOLY HAKIM
WILLIAM H. COKE

DEFENDANT, CROSS DEFENDANT AND CROSS COMPLAINANT KYU LEE'S MOTION FOR SUMMARY JUDGMENT

TENTATIVE RULING:

Plaintiff Gloria Del Rosario Austria alleges that she was injured after tripping and falling on the sidewalk in front of Defendant Kyu Lee's house. Plaintiff has sued Defendant Lee for Negligence and Premises Liability. Defendant Lee has moved for summary judgment or, alternatively, summary adjudication, as to both claims.

Defendant's motion for summary judgment is **GRANTED**.

Plaintiff's objections #1-10 are **OVERRULED**.

LEGAL STANDARD

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code of Civ. Proc., § 437c, subd. (a)(1).) Summary judgment will only be granted "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Id., at subd. (c).)

"A party may move for summary adjudication as to one or more causes of action within an action ... if the party contends that the cause of action has no merit" (Code of Civ. Proc., § 437c, subd. (f)(1).) A cause of action has no merit if one or more of its elements cannot be separately established or an affirmative defense can be established. (Id., subd. (o).)

A defendant moving for summary judgment or summary adjudication has an initial burden of showing either that one or more elements of a cause of action cannot be established or that there is a complete defense to the cause of action. (Code of Civ. Proc., § 437c, subd. (p)(2).) Once the initial burden has been carried, the burden shifts to the opposing party to show that a triable issue of material fact exists as either to the cause of action or a defense thereto, as applicable. (Ibid.) "There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.)

The moving party's ultimate burden of persuasion that there are no issues of triable fact, however, never shifts to the opposing party. (*Aguilar*, 25 Cal.4th at 850.) This burden is unaffected by the strength or weakness of the showing in opposition to the motion (*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519), and

summary judgment must be denied—despite deficiencies in the opposition—if the burden has not been carried (*Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 416).

Because summary judgment deprives an adverse party of the right to a trial, any doubts are resolved in favor of the party opposing the motion. (*Huynh v. Ingersoll-Rand* (1993) 16 Cal.App.4th 825, 830; *See's Candy Shops, Inc. v. Superior Court* (2012) 210 Cal.App.4th 889, 900.) Thus, “[t]he moving party’s affidavits are to be strictly construed, and ... all conflicts in the affidavits are to be resolved in favor of the opposing party and all reasonable inferences are to be drawn in favor of that party as well.” (*Hufft v. Horowitz* (1992) 4 Cal.App.4th 8, 20.)

LEGAL ANALYSIS

Plaintiff’s Objections Fail

Plaintiff objects to several questions asked during her deposition concerning whether she remembers where, how and why she fell, including the following (in order from objection #1 to 10):

- (1) Is this where you fell where the accident occurred?
- (2) Do you know why you fell to the ground that day?
- (3) You don’t know why you fell?
- (4) Do you know if something caused you to trip and fall?
- (5) You don’t know what caused you to fall?
- (6) And you don’t know why you fell?
- (7) So it’s your testimony you don’t know why you fell?
- (8) Do you believe you tripped over something on the sidewalk when you fell?
- (9) Do you know why you fell?
- (10) Was there as specific thing on the sidewalk that caused you to fall?

(See Plaintiff’s Objections, Nos. 1-10.)

Plaintiff objects to each question on the same bases: lack of foundation; inadmissible speculation and conclusions; improper lay opinion; and call for expert opinion. (*Ibid.*)

Defendant argues that the objections are untimely and that questions to the form of question must be made at the time of the deposition when the question was asked. The Court need not reach those issues here. Each of the questions is a proper personal knowledge question asking Plaintiff to describe her firsthand experience of an event she personally witnessed and was involved in. Plaintiff has personal knowledge of her fall by definition. The questions do not call for speculation but rather call for Plaintiff’s own sensory experience. For those same reasons, the questions do not call for expert testimony and Plaintiff’s answers do not constitute improper lay opinion. The Court acknowledges that Plaintiff’s answers are not dispositive to her claims, which may be supported by other evidence.

Plaintiff’s objections #1-10 are **OVERRULED**.

Plaintiff Has Not Presented Evidence Creating Triable Issues of Fact

Negligence and premises liability claims share identical elements under California law. The elements are: (1) a legal duty of care owed by the defendant to the plaintiff, (2) breach of that duty, and (3) proximate cause resulting in injury and damages. (*Martin v. Gladstone* (2023) 96 Cal.App.5th 681, 689; *Gonzalez v. Interstate Cleaning Corp.* (2024) 106 Cal.App.5th 1026, 1034.) For premises liability, the duty element requires that the property owner have actual or constructive knowledge of the dangerous condition, or should have been able to discover it through exercise of ordinary care. (*Joshi v. Fitness Int'l, LLC* (2022) 80 Cal. App.5th 814, 832-33.)

Defendant argues that both of Plaintiff's causes of action fail because Plaintiff testified at her deposition that she does not recall where on the sidewalk she fell. Thus, Plaintiff cannot establish that she fell on the portion of the sidewalk in front of Defendant's house. Defendant has submitted evidence that Plaintiff consistently testified at her deposition that she does not recall where she fell on sidewalk along the residential block where Defendant's house is located. (Coke Decl., Ex. B, Plaintiff's Deposition Transcript, 20:10-12, 30:8-16, 58:25 – 59:18, 60:15-22.)

Defendant has further presented evidence of Plaintiff's deposition testimony in which Plaintiff testified that she does not know why she fell; that there was no specific thing on the sidewalk that caused her to fall; that she walked on that sidewalk many times over the years, including twice a day during the six months leading up to the fall; and that she never noticed any change to the conditions on the sidewalk prior to the fall. (Id., at 26:18 – 27:6, 28:18 – 29:5, 30:24 – 31:11, 33:20-24, 53:25 – 54:3, 61:10-13.)

Finally, Defendant has submitted a declaration by Lisa Lee, Defendant's daughter, who has been acting as the property manager for the subject property since at least January of 2021. (Lee Decl., ¶¶ 2, 5.) Ms. Lee declares that there have never been any complaints or warnings from their tenants or anyone else to her or her parents regarding cracks or any other dangerous conditions to the sidewalk in front of their property. (Id., ¶¶ 7-9.)

Defendant has also presented evidence negating actual or constructive notice of any dangerous condition on the sidewalk in front of the property.

Plaintiff argues that she need not remember her fall to recover on her claims against Defendant. Plaintiff argues that she testified she tripped on the sidewalk in front of a brown house on the block where Defendant's house is located. (Oppo., 8:26-28, citing Plaintiff's Response to Defendant's UMF No. 14, 15, 19.) Plaintiff argues her deposition was taken approximately three years after the incident and that she sustained substantial trauma to her face and eye during the fall, both of which have affected her ability to recall details about the incident. (Oppo., 9:3-8.) Plaintiff further argues that her husband was with her at the time of the fall and was a witness to the incident and took pictures of the area where she fell. (Oppo., 9:8-12.)

While the Court agrees that Plaintiff need not necessarily recall the fall to recover on her claims, Plaintiff still must present other admissible evidence to establish triable issues as to the location of the fall, Defendant's breach, and causation. Plaintiff has failed to do so. The only evidence presented by Plaintiff is her full deposition transcript, without highlights to relevant testimony. Plaintiff testified at her deposition that while she did not recall the number of the house she fell in front of, she recalls that it was "light brown or brown something." (Coke Decl., Ex. B, 30:8-23.) However, Plaintiff has not presented any evidence that Defendant's house matches that description.

Separately, even if the Court were to assume that Defendant's house matched the brown house described in Plaintiff's deposition, Plaintiff has provided no evidence to establish a triable issue of fact that any dangerous or

otherwise unreasonable condition of the sidewalk caused her to fall. In *Buehler v. Alpha Beta Co.* (1990) 224 Cal.App.3d 729, 733-34, the court affirmed summary judgment where the plaintiff had no idea what caused her to fall, finding that conjecture that the floor might have been defective at the location where the plaintiff happened to fall is mere speculation legally insufficient to defeat summary judgment. (See also, *Peralta v. Vons Companies, Inc.* (2018) 24 Cal.App.5th 1030, 1035-36 [absent any evidence of dangerous condition at location of fall, speculation does not establish causation].) Here, Plaintiff similarly relies on conjecture and speculation that is insufficient to defeat summary judgment.

Plaintiff argues that her husband was with her during the incident and allegedly took photographs of the area after the incident. However, Plaintiff has submitted no evidence of her husband's account of the events or the alleged photographs taken after the incident. Unproduced witness testimony cannot create a triable issue of fact. (*Wall St. Network, Ltd., v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1190-91 [trial court properly declined to consider alleged testimonial evidence not included with opposition where subject witness was available].) A party cannot avoid summary judgment by asserting facts based on mere speculation and conjecture; the party must produce admissible evidence raising a triable issue of fact. (*Restivo v. City of Petaluma* (2025) 111 Cal.App.5th 267, 279.)

Accordingly, Defendant Lee's Motion for Summary Judgment is **GRANTED** as to Plaintiff's claims against Defendant for negligence and premises liability.

Any party who contests a tentative ruling must email Dept2@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests. The Court reminds parties argument will not be heard on the set hearing date. Parties will be notified of the date set for any argument if the motion is contested.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order and judgment in two separate documents consistent with the Court's ruling, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

2:00 PM

LINE: 2

23-CIV-03335

WILLIAM ROGERS, ET AL VS. TRANSITAMERICA SERVICES, INC., ET AL

WILLIAM ROGERS
TRANSITAMERICA SERVICES, INC.

ANDREW P MCDEVITT
STEPHANIE L QUINN

DEFENDANTS PENINSULA CORRIDOR JOINT POWERS BOARD, TRANSITAMERICA SERVICES, INC. and HERZOG TRANSIT SERVICES, INC.’S MOTION TO COMPEL COMPLIANCE WITH SUBPOENA BY NON-PARTY STACY WITBECK, INC.

TENTATIVE RULING:

Defendant Peninsula Corridor Joint Powers Board’s unopposed motion for an order compelling non-party Stacy Witbeck Inc. (“SWI”), to produce responsive documents pursuant to deposition subpoena for production of records in response to Nos. 1 through 13 is **GRANTED**.

Defendant is reminded that exhibits **MUST** be properly bookmarked: it is not the Court’s onus to parse through a declaration over one hundred fifty pages in length to find exhibits cited therein. “[E]lectronic exhibits must include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit.” (Cal. Rules of Court, rule 3.1110(f)(4); see also San Mateo County Superior Court, L.R. 3.3 [“Failure to bookmark exhibits to electronically filed documents may result in rejection of the party’s e-filing by the Clerk of the Court or in continuance of the hearing by the Court on the related motion.”].)

BACKGROUND

This is an injury accident and negligence action brought by Plaintiff William Rogers and his wife Sarah Rogers against Defendants PCJPB, Transitamerica Services Inc. (“TASI”), and Herzog Transit Services, Inc. after Plaintiff William Rogers, an employee of Modern Railway Systems (“MRS”), was injured on Caltrain property.

Caltrain had contracted with Balfour Beatty Infrastructure (“BBI”) to modernize the Caltrain passenger rail service by converting from diesel powered locomotives to electrical power. As part of the Caltrain Electrification Project (hereinafter referred to as the “Project”), BBI subcontracted with MRS to perform signalization work. MRS is a subsidiary of SWI and SWI also provided services along with MRS as part of the Project.

The injury-accident occurred on August 25, 2022, when Plaintiff William Rogers was working on Caltrain’s property and fell through timber planking on the Oregon Expressway Bridge onto the Oregon Expressway below. The underlying lawsuit followed on July 20, 2023, and is set for trial on November 20, 2026. A cross-complaint was also filed.

The instant motion seeks to compel non-party SWI to produce responsive documents pursuant to the second deposition subpoena served on October 21, 2025, for production of records served on in response to Nos. 1

through 13 pursuant to Code of Civil Procedure sections 1987.1, 2025.280, 2025.480, 2025.450. (Declaration of Pearl M. Walker iso Motion to Compel Compliance with Subpoena, filed January 5, 2026, ¶ 8, Ex. 5.) SWI served its objections to the second subpoena on November 5, 2025. (Walker Decl. ¶ 9 Ex. 6.) This motion was filed on Monday, January 5, 2026.

On July 9, 2026, defendant filed a notice of non-opposition to the instant motion.

On July 13, 2026, SWI filed a motion for relief pursuant to Code of Civil Procedure section 473 requesting that the Court allow Stacy Witbeck to argue its points in that opposition at the instant hearing date, July 16, 2026, because the opposition brief was not filed due to counsel's calendaring mistake. This motion is not properly before the Court and the Court declines to rule on the merits of the motion to vacate.

LEGAL STANDARD

"[T]he discovery statutes vest a wide discretion on the trial court in granting or denying discovery." (*Greyhound Corp. v. Superior Court In and For Merced County* (1961) 56 Cal.2d 355, 378 [superseded by statute].) " 'The standard of review generally applicable to review of discovery orders is abuse of discretion, as management of discovery lies within the sound discretion of the trial court. [Citations.]' [Citation.]" (*Haniff v. Superior Court* (2017) 9 Cal.App.5th 191, 198.)" (*Manuel v. Superior Court of Santa Clara County* (2022) 82 Cal.App.5th 719, 727.)

Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.

(Code Civ. Proc., § 2017.010.)

In California, discovery may be obtained from a nonparty through an oral deposition, a written deposition, or a deposition for the production of business records and things. (Code Civ. Proc., § 2020.010, subd. (a).) To pursue the deposition of a nonparty, a party must generally serve a deposition subpoena. (*Id.*, § 2020.010, subd. (b).) "A deposition subpoena that commands only the production of business records for copying shall designate the business records to be produced either by specifically describing each individual item or by reasonably particularizing each category of item, and shall specify the form in which any electronically stored information is to be produced, if a particular form is desired." (*Id.*, § 2020.410, subd. (a).)

(*Board of Registered Nursing v. Superior Court* (2021) 59 Cal.App.5th 1011, 1030.)

"[A] party seeking to compel production of records from a nonparty must articulate specific facts justifying the discovery sought; it may not rely on mere generalities. (*Calcor*, at p. 224, 61 Cal.Rptr.2d 567.) In assessing the

party's proffered justification, courts must keep in mind the more limited scope of discovery available from nonparties. (See *Catholic Mutual Relief Society v. Superior Court* (2007) 42 Cal.4th 358, 366, fn. 6, 64 Cal.Rptr.3d 434, 165 P.3d 154.” (*Board of Registered Nursing v. Superior Court* (2021) 59 Cal.App.5th 1011, 1039 (*Board*).)

DISCUSSION

Initially, the Court notes the instant motion is timely because the statutory 60th day fell on Sunday, January 4, 2026. Therefore, the instant motion’s filing date of January 5, 2026 was timely. (Code Civ. Proc. § 2025.480, subd. (b); *Board, supra*, 59 Cal.App.5th at 1031.)

Defendant PCJPB’ brings this motion on the basis that SWI has information that may be probative of issues of liability, comparative fault, as well as the facts and circumstances that lead to Plaintiff William Rogers’ injuries because this discovery is relevant to the subject matter involved in the pending action. Specifically, the request seeks all documents evidencing, reflecting or referring to safety conditions, inspection findings, maintenance assessments, or any actual and/or potential safety hazards relating to Oregon Expressway Bridge during the period of August 1, 2022, to August 31, 2022. Defendant contends their original request has been substantially narrowed, limiting timeframe and the scope of the information sought. Even though an opposition was not timely presented, the Court addresses the merits of the request below as set forth in Defendant’s separate statement of responses filed in support of this motion.

REQUEST NO. 1: ALL DOCUMENTS, communications, and records in any form evidencing, reflecting or referring to the performance of any work, maintenance, or repair activities by Stacy Witbeck Inc., at or about BRIDGE, during the period of August 1, 2022, to August 31, 2022.

RESPONSE TO TOPIC NO. 1: SW objects to this request as improper, harassing, overly broad and impermissible under California law as well as duplicative and unreasonably cumulative in light of Defendants’ prior subpoenas to MRS (a subsidiary of SWI.) SW further objects to this request to the extent it seeks documents protected by the attorney-client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 2: ALL DOCUMENTS, communications, and records in any form evidencing, reflecting or referring to safety conditions, inspection findings, maintenance assessments, or any actual and/or potential safety hazards relating to BRIDGE during the period of August 1, 2022, to August 31, 2022.

RESPONSE TO TOPIC NO. 2: SW objects to this request as improper, harassing, overly broad and impermissible under California law as well as duplicative and unreasonably cumulative in light of Defendants’ prior subpoenas to MRS (a subsidiary of SWI.) SW further objects to this request to the extent it seeks documents protected by the attorney-client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 3: ALL DOCUMENTS, communications, and records in any form evidencing, reflecting or referring to the existence, report, discovery, or repair of any open hole or hazardous opening on the BRIDGE from August 01, 2022, till August 31, 2022.

RESPONSE TO TOPIC NO. 3: SW objects to this request as improper, harassing, overly broad and impermissible under California law as well as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS (a subsidiary of SWI.) SW further objects to this request to the extent it seeks documents protected by the attorney-client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 4: All photographs, reports, or communications from August 1, 2022 to August 31, 2022 relating to any open hole on the BRIDGE, including those showing knowledge of the hole, safety measures taken, or changes to signage, markings, or warnings.

RESPONSE TO TOPIC NO. 4: SW objects to this request as improper, harassing, overly broad and impermissible under California law, and as well as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS. SW further objects to the phrases "knowledge of the hole," "safety measures taken," and "changes to signage, markings, or warnings" on the basis that they are all vague, ambiguous, and unintelligible, including but not limited to because it is unclear what the subject of the phrases is (i.e., whose or what's knowledge, who or what took the safety measures, who or what made the changes at issue in the request). The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 5: Any correspondence, including emails, letters, text messages, or other written communications, between employees, contractors, or third parties regarding any work performed in or around the BRIDGE from August 01, 2022, till August 31, 2022.

RESPONSE TO TOPIC NO. 5: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS, MRS's prior productions, and the information otherwise available to the Defendants. SW further objects to this request to the extent it seeks documents protected by the attorney client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 6: Any safety inspection reports, audits or evaluations conducted in relation to the BRIDGE, particularly any references to hazardous conditions, safety violations, or corrective actions taken from August 01, 2022, till August 31, 2022.

RESPONSE TO TOPIC NO. 6: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably

cumulative in light of Defendants' prior subpoenas to MRS, MRS's prior productions, and the information otherwise available to the Defendants. SW further objects to this request to the extent it seeks documents protected by the attorney client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 7: All records, including incident reports and complaints, that document any injuries, close calls, or safety issues related to the BRIDGE between August 1, 2022, and August 31, 2022.

RESPONSE TO TOPIC NO. 7: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS, MRS's prior productions, and the information otherwise available to the Defendants. SW further objects to this request to the extent it seeks documents protected by the attorney client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 8: Any photographs or videos depicting work performed on or near the BRIDGE from August 1, 2022, through August 31, 2022, including but not limited to images documenting project progress, inspections, or safety measures in effect during that period.

RESPONSE TO TOPIC NO. 8: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS, MRS's prior productions, and the information otherwise available to the Defendants. SW further objects to this request to the extent it seeks documents protected by the attorney client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence.

RULING: GRANTED. The request is reasonably tailored and seeks photographs and videos relevant to the issues in dispute. The subpoena is appropriately limited to materials in SWI's possession depicting work performed by SWI at or near the Bridge during the relevant time period.

REQUEST NO. 9: Any maps, plans, diagrams, blueprints, engineering drawings or other technical DOCUMENTS evidencing, depicting, or referring to any work completed or planned by Stacy Witbeck, Inc. at or about the BRIDGE during the period of August 1, 2022, to August 31, 2022.

RESPONSE TO TOPIC NO. 9: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS and for seeking privileged documents and information that is neither admissible nor reasonably calculated to lead to discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 10: Any DOCUMENTS, including meeting minutes, notes, agendas, or summaries referring to or reflecting any safety meetings and/or project-related discussions in which Stacy Witbeck discussed the BRIDGE between August 1, 2022, and August 31, 2022.

RESPONSE TO TOPIC NO. 10: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS and for seeking privileged documents and information that is neither admissible nor reasonably calculated to lead to discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 11: Any DOCUMENTS, communications and records in any form evidencing, reflecting, or referring to any complaints, reports, or notices made by Stacy Witbeck's employees, or third parties regarding actual or potential unsafe conditions at or near the BRIDGE during the period of August 1, 2022, to August 31, 2022.

RESPONSE TO TOPIC NO. 11: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS and for seeking privileged documents and information that is neither admissible nor reasonably calculated to lead to discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 12: All DOCUMENTS, including but not limited to maintenance logs, repair records, work orders, inspection reports, and internal communications, concerning any maintenance or repair activity related to the BRIDGE from August 1, 2022 through August 31, 2022, specifically including any references to the existence of an open hole, any work performed to address or remedy such condition, and any removal, modification, or placement of warnings, signage, or safety markings related thereto.

RESPONSE TO TOPIC NO. 12: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS and for seeking privileged documents and information that is neither admissible nor reasonably calculated to lead to discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 13: All DOCUMENTS including but not limited to work orders, maintenance and repair records, inspection reports, photographs, videos, correspondence, and internal communications, relating to any work performed on or involving the signal equipment known as an AFTAC box and/or any associated junction box located on the north side of the BRIDGE near the Caltrain California Avenue Station, regardless of whether such work was planned, in progress, or completed.

RESPONSE TO TOPIC NO. 13: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably

cumulative in light of Defendants' prior subpoenas to MRS and for seeking privileged documents and information that is neither admissible nor reasonably calculated to lead to discovery of admissible evidence. **RULING: GRANTED.** The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED.**

Any party who contests a tentative ruling must email Dept2@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests. The Court reminds parties argument will not be heard on the set hearing date. Parties will be notified of the date set for any argument if the motion is contested.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

2:00 PM

LINE: 3

23-CIV-05077

DAWN CALVERT VS. NEWELL'S COCKTAIL LOUNGE

DAWN CALVERT
NEWELL'S COCKTAIL LOUNGE

PRO SE
WILLIAM S. KRONENBERG

PLAINTIFF DAWN CALVERT'S MOTION QUASH OR, IN THE ALTERNATIVE, TO MODIFY DEFENDANT'S SUBPOENAS FOR PRODUCTION OF RECORDS

TENTATIVE RULING:

Plaintiff's motion to quash was filed on January 9, 2026. At the time of filing, plaintiff did not provide proof that the moving papers were served on defendant. On February 10, 2026, plaintiff filed a proof of service indicating that documents were served on counsel for defendant by mail on January 10, 2026. However, the documents served were not identified. To date, plaintiff has not provided proof that the moving papers were on defendant.

However, on July 7, 2026, defendant filed and served opposition to the motion. Code of Civil Procedure section 1005 requires any opposition to be filed and served nine court days before the hearing date. Defendant's opposition was filed and served 7 court days before the hearing.

The court also notes that it was served on plaintiff electronically. Code of Civil Procedure section 1010.6, subdivision (c)(1) provides that an unrepresented party may consent to receive electronic service by serving notice on all parties and filing the notice with the court or by manifesting consent through electronic means with the court or the court's electronic filing service provider. Defendant has not established that plaintiff consented to electronic service.

The court will exercise its discretion to consider the untimely opposition. However, the motion is continued to August 13, 2026, to give plaintiff time to file a reply brief. No later than nine court days prior to the continued hearing date, defendant shall serve its opposition on plaintiff by overnight mail.

Any party who contests a tentative ruling must email Dept2@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests. The Court reminds parties argument will not be heard on the set hearing date. Parties will be notified of the date set for any argument if the motion is contested.

2:00 PM

LINE: 4

25-CIV-06878

FRANK KAUL VS. AFONSO INFANTE, ET AL

FRANK KAUL
AFONSO INFANTE

PRO SE
PRO SE

DEFENDANT ANH TRUONG'S DEMURRER TO VERIFIED FIRST AMENDED COMPLAINT

TENTATIVE RULING:

Defendant Anh Truong's Demurrer to Plaintiff Frank Kaul dba Swift Legal's Verified First Amended Complaint ("FAC") is **SUSTAINED WITHOUT LEAVE TO AMEND**, as follows:

When a court sustains a demurrer with leave to amend, the scope of leave ordinarily is limited to curing defects in the causes of action to which the demurrer was sustained. A plaintiff may not add a new cause of action without obtaining permission to do so unless the new claim falls within the scope of the order granting leave to amend. (*Community Water Coalition v. Santa Cruz County Local Agency Formation Com.* (2011) 200 Cal.App.4th 1317, 1329; *People ex rel. Dept. Pub. Wks. v. Clausen* (1967) 248 Cal.App.2d 770, 785-786.) In the original Complaint, Plaintiff asserted claims against Defendant Truong, including a claim under the federal Racketeer Influenced and Corrupt Organizations Act ("RICO"). On March 5, 2026, the Court sustained Defendant Truong's demurrer "**as to all claims against Defendant Truong, WITH LEAVE TO AMEND.**" (Mar. 5, 2026 Minute Order, p. 6.) The FAC does not replead a RICO claim. Instead, it asserts against Defendant Truong only a new Fourth Cause of Action for Aiding and Abetting Fraud. (FAC, ¶¶ 56-67.) The Court's prior order did not authorize Plaintiff to add a new cause of action. The Fourth Cause of Action therefore exceeds the scope of the leave granted. Accordingly, Defendant Truong's Demurrer to the Fourth Cause of Action is **SUSTAINED WITHOUT LEAVE TO AMEND.**

Any party who contests a tentative ruling must email Dept2@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests. The Court reminds parties argument will not be heard on the set hearing date. Parties will be notified of the date set for any argument if the motion is contested.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Defendant Truong shall prepare a proposed order repeating this tentative ruling verbatim, pursuant to California Rules of Court, rule 3.1312, and San Mateo County Superior Court Local Rule 3.403(b)(iv), and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE: 5

25-CIV-06878

FRANK KAUL VS. AFONSO INFANTE, ET AL

FRANK KAUL
AFONSO INFANTE

PRO SE
PRO SE

DEFENDANT ANH TRUONG'S RENEWED MOTION FOR SANCTION

TENTATIVE RULING:

For the reasons stated below, Defendant Anh Truong's Renewed Motion for Sanctions is DENIED. The challenged allegations present pleading and factual disputes appropriately addressed by demurrer, not sanctions. Defendant has not shown subjective bad faith under Code of Civil Procedure 128.5 or an objectively frivolous filing under section 128.7. Discovery-related complaints are not sanctionable under those statutes, and the requested monetary, issue, evidentiary, and terminating sanctions are unsupported and disproportionate. The motion is **DENIED**.

Any party who contests a tentative ruling must email Dept2@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests. The Court reminds parties argument will not be heard on the set hearing date. Parties will be notified of the date set for any argument if the motion is contested.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare a proposed order repeating this tentative ruling verbatim, pursuant to California Rules of Court, rule 3.1312, and San Mateo County Superior Court Local Rule 3.403(b)(iv), and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE: 6

25-CIV-09320

BART D. KIMBER VS. JOE TORRES, ET AL

BART D. KIMBER
JOE TORRES

PRO SE
WILLIAM B. LUTON

DEFENDANTS ALL RISK SHIELD, INC. and JOE TORRES' MOTION TO TRANSFER AND/OR CHANGE VENUE

TENTATIVE RULING:

For the reasons stated below, the motion to change venue to San Luis Obispo County is **GRANTED** pursuant to CCP §396b. Defendants have offered evidence to show that San Mateo County is neither their residence nor principal place of business. When a plaintiff brings an action against several defendants, both individual and corporate, in a county which is neither the residence nor principal place of business of any defendant, an individual defendant has a right to a change of venue to the county of his residence even though venue as initially laid may otherwise be justifiable upon one of the grounds in §395.5. *Carruth v. Superior Court* (1978) 80 Cal.App.3d 215, 220-221.

Any party who contests a tentative ruling must email Dept2@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests. The Court reminds parties argument will not be heard on the set hearing date. Parties will be notified of the date set for any argument if the motion is contested.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

2:00 PM

LINE: 7

25-CLJ-00488

WELLS FARGO BANK, N.A. VS. INAS S SHAABAN

WELLS FARGO BANK, N.A.
INAS S SHAABAN

HARLAN M. REESE
PRO SE

DEFENDANT INAS SHAABAN'S MOTION TO QUASH SUMMONS

TENTATIVE RULING:

As an initial matter, Defendant's notice identifies an incorrect hearing location. Department 2 is located at the Northern Branch, Courtroom K, 1050 Mission Road, South San Francisco, California 94080. (See Cal. Rules of Court, rule 3.1110 [the notice "must specify" the location of the hearing].)

For the following reasons, the Motion to Quash Service of Summons (the "Motion") brought by specially appearing defendant Inas S. Shaaban ("Specially Appearing Defendant") is **DENIED**.

BACKGROUND

According to the Complaint, the parties entered into a credit card agreement on or about November 1, 2017. (Complaint, box BC-1 & Exh. A.) Plaintiff seeks to recover \$13,400.93 in damages, together with attorney's fees and costs according to proof, less any payments not already credited. (Id., boxes 10, BC-4, & BC-5.) Plaintiff alleges that Specially Appearing Defendant breached the agreement by failing to make the required payments. (Id., box BC-2.)

Through the Motion, Specially Appearing Defendant seeks an order quashing service of the summons on the ground that the Court lacks personal jurisdiction because service of the summons and complaint was defective. (Code Civ. Proc., § 418.10, subd. (a)(1).)

DISCUSSION

A motion to quash service of summons for lack of personal jurisdiction is an evidentiary motion. When the evidence concerning jurisdictional facts is conflicting, the trial court resolves those factual disputes, and its findings will not be disturbed on appeal if supported by substantial evidence. (*Messerschmidt Dev. Co. v. Crutcher Resources Corp.* (1978) 84 Cal.App.3d 819, 825, citing *Wilson v. Eddy* (1969) 2 Cal.App.3d 613, 617-618.)

Specially Appearing Defendant declares that she learned of this lawsuit from a legal aid attorney who is not representing her. (Shaaban Decl., ¶ 3.) However, neither a default nor a judgment has been entered in this action. She further declares that she had not resided at the address where service was attempted for approximately four years before January 7, 2026. (Id., ¶¶ 2, 4, & 5.) That four-year period includes October 16

and 17, 2025, the dates on which substituted service was purportedly effected. (Proof of Service ("PoS"), filed Oct. 17, 2025.)

Accordingly, Specially Appearing Defendant contends Plaintiff failed to effect personal service and did not satisfy the statutory requirements for substituted service because the address where service was attempted was not her dwelling house, usual place of abode, usual place of business, or usual mailing address. (Code Civ. Proc., § 415.20, subd. (b).) She therefore argues that service of summons should be quashed. (Code Civ. Proc., § 418.10, subd. (a)(1).)

However, the registered California process server's Proof of Service gives rise to the rebuttable presumption established by **Evidence Code section 647** that the facts stated therein are true. Those facts include the process server's declarations that:

"I delivered the documents to an individual who refused to give their name who identified themselves as the co-resident"; and

"When I'm about to leave a Female Individual answered the door She confirmed that the subject is a resident but not available."

(PoS, box 5.b.)

These declarations constitute evidence that Specially Appearing Defendant resided at the address where substituted service was attempted.

Specially Appearing Defendant filed no reply. Even considering her declaration as rebuttal evidence, it consists solely of her own statement without corroborating evidence. Weighing the competing evidence, the Court concludes that the statutory presumption arising from the registered process server's Proof of Service has not been overcome. The Court therefore finds that substituted service was properly effected.

Plaintiff also submits evidence from the United States Postal Service and the registered California process server tending to show that Specially Appearing Defendant received mail at the address where substituted service was attempted during the relevant time period. (McKee Decl., ¶¶ 8-18 & Exhs. A-D.) Plaintiff further lays a proper foundation for admission of those records under the business records exception to the hearsay rule. (McKee Decl., ¶¶ 1-7.) Although the exhibits may contain additional layers of hearsay, some of those statements likewise appear to fall within the business records exception. In any event, Specially Appearing Defendant has asserted no evidentiary objections. This evidence further supports the Court's finding that substituted service was validly effected.

Plaintiff also argues that the Motion is untimely. Code of Civil Procedure section 418.20, subdivision (a), requires a motion to quash to be filed on or before the last day to plead. According to the Proof of Service, substituted service was completed on October 17, 2025. Accordingly, Defendant's time to respond expired on November 26, 2025. (Code Civ. Proc., § 415.20, subd. (b).) The Motion, filed on January 7, 2026, is also untimely.

Accordingly, the Motion is **DENIED**.

Any party who contests a tentative ruling must email Dept2@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests. The Court reminds parties argument will not be heard on the set hearing date. Parties will be notified of the date set for any argument if the motion is contested.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

**UD LAW AND MOTION CALENDAR
THURSDAY, JULY 16, 2026**

2:00 PM

LINE: 1

26-UDL-00079

473-475 GRAND AVE LLC VS. ARTURO PEREZ, ET AL

**473-475 GRAND AVE LLC
ARTURO PEREZ**

**JOANNA KOZUBAL
PRO SE**

PLAINTIFF 473-475 GRAND AVE LLC'S MOTION TO ENFORCE SETTLEMENT AGREEMENT PER CCP 664.6 AND FOR JUDGMENT PURSUANT TO STIPULATION

TENTATIVE RULING:

For the reasons stated below, the Motion to Enforce Settlement Agreement under Code of Civil Procedure section 664.6 and for Entry of Judgment Pursuant to Stipulation, filed by Plaintiff 473-475 Grand Ave, LLC ("Plaintiff"), is **DENIED WITHOUT PREJUDICE**.

First, Plaintiff has not established proper service of the motion on Defendants Arturo Perez and Rubenia Elizabeth Zuniga ("Defendants"). The proof of service states that both Defendants were served electronically at a single email address: andrewperez2129@gmail.com. Defendants are self-represented, and the Court's records contain no evidence that either Defendant expressly consented to electronic service. (Code Civ. Proc., § 1010.6, subd. (c)(2), (3).) Electronic filing alone does not constitute express consent to electronic service. (Id., subd. (c)(3)(ii).) Moreover, even if electronic service were authorized, Plaintiff has not established that this single email address is a valid electronic service address for both Defendants.

Second, the notice of motion does not state the courthouse address for Department 2. The first page of each paper must specify the date, time, and location, if ascertainable, of the scheduled hearing. (Cal. Rules of Court, rule 3.1110(b)(1).) The notice is therefore deficient.

If the tentative ruling is uncontested, it will become the order of the Court. Because Defendants are self-represented, counsel for Plaintiff shall prepare, serve, and submit a proposed order that repeats this tentative ruling verbatim, in accordance with California Rules of Court, rule 3.1312, and San Mateo County Superior Court Local Rule 3.403(b)(iv). Plaintiff shall provide written notice of the ruling to all parties who have appeared in the action, as required by law.

2:00 PM

LINE: 2

26-UDL-00367

NRT PROPERTIES LLC VS. LIZA SCATENA, ET AL

**NRT PROPERTIES LLC
LIZA SCATENA**

**GRANT H. BAKER
CARLOS G. MARTINEZ**

PLAINTIFF NRT PROPERTIES LLC'S MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

TENTATIVE RULING:

The unopposed motion is granted. Plaintiff shall file the proposed amended complaint no later than July 23, 2026.

Posted: 3:00 P.M.

